

Tenant connection without owner NOC — consider under Supply Code 4.4(a)

High Court of Judicature at Allahabad · Division Bench · 12 July 2011 · WRIT - C No. - 37295 of 2011 · **Writ disposed; licensee to consider tenant's connection application under para 4.4(a) within two months.**

HEADNOTE

A tenant seeking a new electricity connection without the owner's no-objection must proceed under para 4.4(a) of the U.P. Electricity Supply Code, 2005 (NOC or, in its absence, indemnity as prescribed). The writ court will not mandamus a connection; if the occupier completes the Code formalities, the licensee is to consider the application and decide within two months in accordance with law.

FACTUAL SUMMARY

Mohd. Ashraf Ansari, a tenant of a shop belonging to respondent No. 4, sought a writ directing U.P. Power Corporation Ltd. officials to give an electricity connection to the shop. Counsel for the distribution licensee submitted that para 4.4(a) of the U.P. Electricity Supply Code, 2005 required the owner's no-objection for a new connection, and that in its absence an indemnity bond had to be furnished. The owner had not given a no-objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4(a)(i)

tenant/occupier new connection — owner NOC or indemnity

HOLDING

Where a tenant seeks a new connection and the owner has not given a no-objection, the occupier must take recourse to para 4.4(a) of the U.P. Electricity Supply Code, 2005, including the indemnity-bond course prescribed where there is no NOC. The High Court will not direct the connection itself; if the petitioner completes the Code formalities, the licensee may consider the application and take an appropriate decision within two months in accordance with law. ¶ 1

FLAG Order cites para 4.4(a) generally, not sub-clause (i).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TENANT IS ENTITLED ON MERITS TO A NEW CONNECTION FOR THE SHOP

Licensee left to consider after Supply Code formalities, including NOC or indemnity as prescribed. ¶ 1